IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.305
CAA-10(ND)/2022

IN THE MATTER OF:
M/s. Moria Tea Estate Ltd. And. M/s. Marvel Global Ltd.
.... APPLICANT/PETITIONER

SECTION
U/s 230-232 **Order delivered on 17.02.2023**

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. SP Singh Chawla, Advocate
For the IT Department	: Mr. Puneet Rai, Mr. Ashvini Kr. Alongwith Mr. Nikhil Jain, Advocates for Income Tax Department
For the OL	: Ms. Hemlata Rawat Counsel for OL
For the RD	: Ms. Shankari Mishra, Advocate for RD

ORDER

We have heard Mr. SP Singh Chawla, Ld. Counsel for the Petitioner. The reports of RD and OL are on record. Mr. SP Singh Chawla, Ld. Counsel for the Petitioner has submitted that he has filed an additional affidavit/undertaking stating therein that the Transferee Company undertakes to discharge the tax liability of the Transferor Company. The Ld. Counsel appearing for the Income Tax Department seeks some time to take instructions.

Ld. Counsel for the Petitioner submits that despite issue of notice and several reminders issued to the Income Tax Department, the Department has not filed any response. Therefore, the Petitioner is directed to file an affidavit/ undertaking.

List on **06.03.2023.**

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Mamta 17.02.2023